

**BEFORE THE
GOVERNING BOARD OF THE
COACHELLA VALLEY UNIFIED SCHOOL DISTRICT**

In the Matter of the Reduction in Force of:

**CERTAIN CERTIFICATED EMPLOYEES OF COACHELLA VALLEY
UNIFIED SCHOOL DISTRICT, Respondents.**

OAH No. 2025020921

PROPOSED DECISION

Kimberly J. Belvedere, Administrative Law Judge, Office of Administrative Hearings, State of California, heard this matter on April 8, 2025, in Thermal, California.

Christine K. Shu and Katie J. Oh, Olivarez Madruga Law Organization, L.L.P., represented the Coachella Valley Unified School District (CVUSD or district).

Jon Y. Vanderpool, Vanderpool Griffith L.L.P., represented 89 respondents, including those who filed a request for hearing but who may not have filed a notice of participation. The district did not oppose the representation of those who did not file a request for hearing or notice of participation.

Respondents Yuri Covarrubias, Ana Tafoya-Barboza, and Jessica Flores were not present at the hearing and were not represented by counsel.

Oral and documentary evidence was received. The record was closed, and the matter was submitted for decision on April 8, 2025.

FACTUAL FINDINGS

Background and Jurisdiction

1. Daniela Tabarez, the district's Interim Chief Business Officer, and Summer Martinez, the district's Director of Certificated Personnel, testified on behalf of the district. The following factual findings are derived from their testimony and documentary evidence admitted at hearing.

2. The district's fiscal health has been in decline for a few years for various reasons. There are more expenditures being generated than revenue being received. This structural deficit has been an ongoing problem that the district has been working to address. The Riverside County Office of Education (RCOE) has fiscal oversight of the district, and the district has been working with the RCOE over the past year to address the structural deficit concerns. Based on budget documents presented, the district will have a structural deficit for the next three school years. A review of the exhibits pertaining to the budget, which included multi-year budget projections for the next three school years, correspondence between the district and the RCOE, and the district's Fiscal Stabilization Plan, all supported the district's position that a reduction in force (and restructuring of the visual and performing arts program) is warranted due to the district's financial situation.

3. On February 20, 2025, the Board of Education for the district adopted Resolution Number 2025-34, reducing or eliminating particular kinds of certificated services for the 2025-2026 school year, and directing the Superintendent or his designee to give appropriate notices to certificated employees whose positions would be affected by the reduction. The decision to reduce or discontinue a particular kind of service is a matter reserved to the district's discretion and is not subject to second-

guessing in this proceeding. (*Rutherford v. Board of Trustees of Bellflower Unified School District* (1976) 64 Cal.App.3d 167.) A school district's decision to reduce a particular kind of service must not be fraudulent, arbitrary or capricious. (*San Jose Teachers Association v. Allen* (1983) 144 Cal. App. 3d 627, 637.) The resolution called for the reduction or discontinuation of the following full-time equivalent (FTE) positions:

<u>Total Non-Management Certificated FTE</u>	<u>48 FTE</u>
Multiple Subject Credential Teachers	29 FTE
Itinerant Pathways to Success	21 FTE
Dual Language	4 FTE
BTSA and PAR Consultant	1 FTE
Migrant Education Program TOSA¹	1 FTE
Independent Studies (Adult Education)	1 FTE
EL TK-12 TOSA	1 FTE
School Nurse Services Credential	4 FTE
Singe Subject English	5 FTE
Single Subject Math	3 FTE

¹ "TOSA" designates a teacher on special assignment.

Single Subject Social Science	3 FTE
Single Subject Physical Education	2 FTE
Single Subject Biology	1 FTE
Single Subject Spanish	1 FTE
<u>Total Management Certificated FTE</u>	<u>12 FTE</u>
Coordinator Attendance-Certificated	1 FTE
Coordinator LCAP	1 FTE
Coordinator of MTSS Data Coach	1 FTE
Coordinator School Climate	1 FTE
Director of CTE	1 FTE
Director of Emergency Operations	1 FTE
Director of Title IX and Compliance	1 FTE
Elementary Assistant Principals	3 FTE
Secondary Assistant Principals	1 FTE
Special Education program Certificated	1 FTE

4. The resolution referenced Exhibit "A," which explained the board would deviate from the normal order of layoffs for personnel who had special training and experience that others with more seniority did not possess (also known as skipping), in accordance with Education Code section 44955. The seminal case for the retention of

less senior employees, *Bledsoe v. Biggs Unified School District* (2008) 170 Cal.App.4th 127, requires a district to not only establish a specific need for personnel to teach a specific course of study, but to also establish that the certificated employee it proposes to retain has special training and experience necessary to teach that course or course of study or to provide those services. (*Id.* at p.138.) The skipping criteria detailed in the resolution are:

1) Certificated personnel who possess a credential authorizing service in Special Education and who will be assigned within the scope of that credential in the 2025-2026 school year.

2) Certificated personnel who possess a single subject English credential, and an ELAI, ELD, or CLAD authorization, and who will be assigned to teach English Language Development (ELD) in the secondary setting (grades 7 through 12) during the 2025-2026 school year.

3) Certificated personnel who possess a valid bilingual cross-cultural language and academic development authorization (BCLAD), bilingual certificate of competence (BCC), bilingual authorization in Spanish (BASP), or a bilingual certificate of competence (BCES), and who will be in a dual language assignment requiring one of the above authorizations for the 2025-2026 school year.

4) Certificated personnel who will be assigned to teach in transitional kindergarten for the 2025-2026 school year and who meet other criteria specified in the resolution.

5. The resolution also referenced Exhibit "B," which established the tie-breaking criteria for employees, who first rendered paid probationary service to the

district on the same date. In other words, the tie-breaking criteria determines who is more “senior” for purposes of this reduction in force if two or more employees had the same seniority date, and then incorporates the results of the tie-breaking into the final seniority list used to make decisions. If the tie-breaking criteria set forth in the resolution exhibit does not resolve all ties, then a lottery process is used to break any ties. The district provided documentary evidence and testimony concerning how it applied the tie-breaking criteria and the lottery process. No evidence showed the district improperly used the tie-breaking criteria or lottery process, and no respondents raised any objections concerning tie-breaking criteria.

6. Thereafter, the district timely provided notice to 110 certificated personnel advising them that their services would not be required for the 2025-2026 school year. The reasons for the recommendation were set forth in the notice. 108 respondents requested a hearing and/or filed a notice of participation, and two did not request a hearing or file a notice of participation. The district did not object to allowing any respondents who did not file a request for hearing or notice of participation to participate in the hearing. The district rescinded 17 layoff notices.² In total, there are 92 respondents remaining that were the subject of this hearing.

7. All prehearing jurisdictional requirements were met.

² The following individuals had their layoff notices rescinded: Maria Aguilar; Gabriel Baca; Jennifer Casals; Esmeralda Castaneda; Bruce Coffey; Amy Dailey; Mario Figueroa; Alysha Infante; Kathleen Mason; Stephanie Milton; Josefine Ortiz; David Osborn; Genesis Sanchez De-Leon; Melissa Shavinski; Guillermo Lira; Erich Stein-Steele; and Bernadette Uden.

Skipping, Bumping, and Tie Breaking

8. No evidence established that the district's skipping criteria was arbitrary or capricious or that the district made any errors with respect to the application of the skipping criteria, noted above. No teachers were skipped under the first skipping criteria. One teacher, Harry Trantham, was skipped under the second skipping criteria. Under the third skipping criteria, 31 teachers were skipped.³ Nine teachers were skipped under the fourth criteria.⁴

9. The district also employed a process to determine whether employees identified for layoff held any other credentials that would entitle them to "bump" into a position being held by a junior employee. A senior employee whose position is discontinued has the right to transfer to a continuing position which he or she is

³ Those skipped under the third criteria were: Jose Rodriguez Mendoza; Imelda Diz Rodriguez; Giselle Paez; Romina Arredondo; Mirka Lino; Laura Razo Huerta; Crystel Alondra Beltran-Lara; Angela Maria Ayala; Diana Anaya Gonzalez; Kelvin Tejeda Bereguete; Marlene Marin Alcantar; Ruth Robledo Infante; Marco Antonio Machuca Gonzales; Talitha Zavala; Maribel Hernandez Rodriguez; Deisy Carrasco; Stephanie Cardenas; Yuri Covarrubias; Cindy Estrada Bribiesca; Martin Loya Castro Jr.; Alma Rocio Padilla; Patricia Lopez; Elizabeth Cervantes; Inez Eyecenia Ryes Aispuro; Melissa Salazar Silvestre; Eduardo Luis Carrasco-Lua; Alicia Serrano; Lucia Rodriguez; Marisa Gaytan; Esteban Lua Zamora; and Rosa Nunez.

⁴ Those skipped under the fourth criteria were: Jessica Meza; Elisa Coronel; Evelyn Castro; Deyci Hernandez Flores; Justin Brown; Alexia Gentry; Alicia Vieyra; Viridiana Morales; and Emily Stein.

certificated and competent to fill. In doing so, the senior employee is entitled to displace or “bump” a junior employee who is filling that position. (*Lacy v. Richmond Unified School District* (1975) 13 Cal.3d 469, 473-474.) In total, seven certificated personnel had the right to bump a junior teacher; two chose to exercise their bumping rights, three chose layoff, and two did not return any form indicating whether they chose layoff or bumping.⁵ No evidence was introduced that the district improperly “bumped” any employees. With respect to the employees who did not return their forms, they were given a deadline of April 30, 2025, to make their selection. If they did not return the forms by that date, Elizabeth Quigley will be assigned to a mathematics teaching position, and Rebecca Kay will be assigned to an English or Social Science teaching position, consistent with their credentials.

10. The services identified in the resolution are particular kinds of services that may be reduced or discontinued within the meaning of Education Code section 44955. The board’s decision to reduce or discontinue those services was neither arbitrary nor capricious. It was a proper exercise of the board’s discretion. The reduction and discontinuation of services was related to the welfare of the district and its pupils, and it became necessary to decrease the number of certificated employees

⁵ The certificated personnel who elected to bump junior teachers were: Carly Mahoney and Christina Martinez, both of whom will be assigned to a position consistent with their credentials. Patricia Bauman, Adalila Garcia, and Gregory Nishimoto chose to be subject to the reduction in force. Elizabeth Quigley and Rebecca Kay did not return their form indicating whether they wanted to bump into a position or be subject to the reduction in force.

as determined by the board. No particular kinds of services were lowered to levels less than those levels mandated by state or federal law.

11. Positively assured attrition was considered in the layoff decisions and will be used in making future rehire decisions.

12. With the exception of the employees being exempted (skipped) as discussed above, no less senior teachers are being retained while more senior teachers credentialed to perform the same service are being laid off.

13. The district noted that making the decision to lay off teachers is never easy, but the district has a duty to remain fiscally solvent. If the reduction in force is not permitted, the district will become insolvent. The district followed all applicable procedures and minimized the number of layoffs necessary to remain solvent.

Respondents' Position

14. The following certificated personnel subject to the reduction in force provided testimony: Adalila Garcia, Justin Weiner, Erica Axelrod, Rebecca Mussetter, Amy Gonzalez, Marisa Gaytan, Rachel Kuiland, and Patricia Bauman. Their testimony was sincere and heartfelt, and generally described a frustration with the district's fiscal situation. All witnesses evidenced an extreme dedication to their positions, and a heartfelt dedication to the students in the district. They love teaching and believe the students will suffer with the reduction in force.

15. In their closing argument, respondents argued that, although the district made a detailed and transparent presentation concerning the reasons and process concerning the reduction in force, the turnover in this district is disheartening. The district does not have its fiscal house in order, and this failure creates a problem every

year that brings the threat of job loss. The manner in which the district is being managed is not in the best interests of the students, or the teachers, who face the threat of job loss year after year.

LEGAL CONCLUSIONS

1. Jurisdiction for this proceeding exists pursuant to Education Code sections 44949 and 44955, and all notices and other requirements of those sections were provided as required.

2. A district may reduce services within the meaning of section 44955, subdivision (b), "either by determining that a certain type of service to students shall not, thereafter, be performed at all by anyone, or it may 'reduce services' by determining that proffered services shall be reduced in extent because fewer employees are made available to deal with the pupils involved." (*Rutherford v. Board of Trustees* (1976) 64 Cal.App.3d 167, 178-179.)

3. A preponderance of the evidence sustained the statements set forth in the district's statements of reduction in force served on respondents concerning the services that will not be required.

4. The district identified the certificated employees who are providing the particular kinds of services that the board directed be reduced or discontinued. Because of the reduction of particular kinds of services, cause exists pursuant to Education Code section 44955 to give notice to respondents that their services will not be required for the 2025-2026 school year. The cause relates solely to the welfare of the schools and the pupils thereof within the meaning of Education Code section 44949.

5. No employee with less seniority than any respondent is being retained to perform a service that any respondent is certificated and competent to render.

6. Elizabeth Quigley and Rebecca Kay had not returned their selection as of the date of this hearing regarding whether they chose layoff or to bump a junior employee. The district assumes they would elect to bump into a position, and both will be reassigned to appropriate positions. If, however, Ms. Quigley or Ms. Kay returned a selection indicating they chose layoff rather than bumping into another position, that will alter the outcome of this case and result in two respondents subject to layoff having their notice rescinded. The district shall ensure that, if Ms. Quigley or Ms. Kay choose to be subject to the reduction in force, that two respondents currently subject to the reduction in force be re-employed consistent with all criteria set forth in the resolution.

RECOMMENDATION

1. It is recommended that before May 15, 2025, the Board of Education for the Coachella Valley Unified School District give notice to the respondents whose names are set forth below, in Appendix 1, that their employment will be terminated at the close of the current school year, and that their services will not be needed for the 2025-2026 school year.

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2. In the event that the two teachers who had not elected layoff or to exercise bumping rights by April 30, 2025, in fact did return a selection by that date selecting layoff, the district shall make appropriate adjustments to the layoff list consistent with those selections (i.e., two layoffs shall be rescinded).

DATE: May 1, 2025



Kimberly Belvedere (May 1, 2025 14:39 PDT)
KIMBERLY J. BELVEDERE
Administrative Law Judge
Office of Administrative Hearings

Appendix 1⁶

1. Mark Allen
2. Crystal Alvarado
3. Roxanne Cota Avalos
4. Erica Axelrad
5. Brianna De La Riva
6. Patricia Bauman
7. Shelley Blume
8. Guillermo Cabrera
9. Sergio Ceja
10. Ana Ceja Avila
11. Diana Champion
12. Jasmine Chapa

⁶ The numbers used in this Appendix reflect nothing more than the respondents that were properly noticed and may be laid off after all skipping and bumping criteria are employed; this list does not take into consideration rehire or recall rights.

13. Claudia Chavez
14. Santiago Delgado
15. Kenny Draper
16. Eric Fernandez
17. Rachel Flores Kuiland
18. Jennifer Floryan
19. Adalila Garcia
20. Cheryl Garner
21. Amy Gonzalez
22. Peter Hernandez
23. Raul Hernandez
24. Damon Juarez
25. Raquel Larios-Duarte
26. Reyna Lemus-Perez
27. Alejandra Martinez
28. Brenda Martinez
29. Maribel Martinez
30. Elyse Moser
31. Roberto Murillo
32. Rebecca Mussetter
33. Gregory Nishimoto
34. Sixta Payan
35. Heidi Plonski
36. Lisa Presley
37. Judith Rodenbeck
38. Paul Rodriguez
39. Analila Saenz
40. Melissa Sanchez
41. Daisy Rodriguez Serrato
42. Jonathan Becerra Serrato
43. Ericka Steele
44. Justin Weiner
45. Qimin Wang
46. Ana Tafoya-Barboza
47. Jessica Flores